

8 Mixed-Use and Transit-Oriented Development

8.1 Mixed Use Development

8.1.1 Definition

Mixed use development/ buildings integrate multiple uses, such as residential, commercial, institutional, and recreational spaces, within a single structure, land parcel or a neighbourhood. Mixed use development is transitioning from land-based distribution to a built-space based approach, allowing for mixing and co-location of compatible uses within a single plot/ structure.

Mixed use development/ buildings offer required flexibility to improve availability and access to facilities within existing urban areas, thereby ensuring optimal utilisation of land. Such a development also leads to reduction in trip lengths, promotes sustainable urban transport, and enables creation of vibrant and safer public areas. Mixed use buildings need to be regulated to manage and mitigate the associated adverse impact related to congestion, increased traffic, and increased pressure on civic amenities.

8.1.2 Permissible locations for mixed-use development:

- Mixed use zones earmarked under Master Plan.
- Mixed use plots identified as part of approved layouts.
- Notified bazaar streets (with specified conditions).
- Along 24-meter and wider roads
- Transit Oriented Development (TOD) Zones.

Development standards for 8.1.2 (c) regarding Bazaar Streets are covered in paragraph 5.1 of the byelaws while for 8.1.2 (e) i.e. TOD Zones, the standards are covered in paragraph 8.2 of the byelaws.

8.1.3 Development Standards for mixed-use development

Parameter/Development Standard	Mixed use zones earmarked under Master Plan	Mixed use plots as part of approved layouts	Notified bazaar streets	Along 24-meter and wider roads	TOD zones
Minimum Plot Size	No restriction	No restriction	No restriction	No restriction	No restriction
Means of Access	9m (plots upto 100 sqm); 12m (other plots)	24m	12m	24m	=>12m
Building Height	Not restricted	Not restricted	Not restricted	Not restricted	Not restricted
Minimum Setbacks	As applicable for higher use	As applicable for higher use	As per para 5.1.5	As applicable for higher use	As applicable for higher use
Floor Area Ratio	As per para 8.1.3.6	As per para 8.1.3.6	As per para 5.1.4	As per Use Zone	As per para 8.2.2.2
Mixing	0-100%	0-100%	Commercial (2 floors)	=>33% (principal use); =<67% (other uses) However, share of single other use shall not be more than principal use.	=>33% (principal use); =<67% (other uses) However, share of single other use shall not be more than principal use.

Parking	As per proposed higher use	As per proposed higher use	As per proposed higher use	As per 3.3.4	1ECS per 100 sqm.
Ground Coverage	Subject to adherence to prescribed setbacks	Subject to adherence to prescribed setbacks	Subject to adherence to prescribed setbacks	Subject to adherence to prescribed setbacks	Subject to adherence to prescribed setbacks

Note-1: Permissible occupancies in mixed-use development shall be as per paragraph 8.1.4. Permissibility of occupancies in mixed-use development shall be governed by the minimum standards prescribed in paragraph 3.2.1.

Note-2: The plot size shall be equal to or more than the minimum plot size requirements for higher use as defined in paragraph 3.2.1.

Note-3: For mixing in plots identified as single and multi-units, the height restrictions as defined under paragraph 4.1.4 shall prevail.

8.1.3.1 Floor Area Ratio (FAR):

Mixed-use buildings described in paragraph 8.1.2 (a) and (b) shall avail FAR as per table below:

Mixed Use Buildings	FAR	BFAR	Road Width (Upto12m)			Road Width (12 -24m)			Road Width (24 - 45m)			Road Width (>45m)		
			PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR
MU Built-up Area		2.0	NA	NA	2.0	1.0	1.0	4.0	1.0	1.5	5.25	1.5	UR	UR
MU non-built-up Area		2.5	NA	NA	2.5	1.25	1.25	5.0	2.5	3.75	6.25	2.5	UR	UR

Note-1: BFAR – Base FAR, PFAR – Purchasable FAR, PPFAR – Premium Purchasable FAR, MFAR – Maximum Permissible FAR, UR – Unrestricted

Note-2: The FAR of Bazaar Streets shall be as per paragraph 5.1.4.

Note-3: For 8.1.2 (d), base FAR of principal use shall be availed, and purchasable FAR and premium purchasable FAR conditions of the principal use shall prevail.

8.2 Transit Oriented Development (TOD)

In view of the continuous urbanization in the state and to meet the growing infrastructure needs, the Uttar Pradesh Mixed Use and Transit Oriented Development Policy was notified in 2015 and further revised in 2022 in line with the National TOD Policy 2017.

8.2.1 Applicability

These provisions shall be applicable in the TOD Zones included in the Master Plan or as notified by the Government.

8.2.2 TOD Plans, Permitted Uses and Building Byelaws

8.2.2.1 Land use mixing in TOD schemes.

Mixed land use shall be permissible in TOD plots, but not mandatory. If mixed use is proposed, it shall be as per the table below.

Land use as per MP/ZDP/layout	Changed land use	Minimum FAR in existing use	In other use FAR*
Residential	Residential Mixed-Use TOD	33 percent	67 percent
Commercial (including retail)	Commercial Mixed-Use TOD	33 percent	67 percent
Office/ Institutional	Office Mixed-Use TOD	33 percent	67 percent
Industrial (except heavy and polluting industries)	Industrial Mixed-Use TOD	33 percent	67 percent
Transportation	Transportation Mixed-Use TOD	Operation as required	Remaining FAR
Public semi public	Public semi public Mixed-Use TOD	33 percent	67 percent

Note* - Subject to restriction that MP/ZDP/layout land use shall remain pre-dominant land use.

8.2.2.2 Floor Area Ratio (FAR) for TOD zone

The building byelaws for TOD zone shall be as follows:

Minimum Right of Way	Base FAR	TOD FAR as % of Base FAR
12m	As per byelaws	150%
>12 - 24m	As per byelaws	250%
>24 - 45m	As per byelaws	350%
>45m	As per byelaws	Unrestricted

Note:

- (1) Basic FAR for various land uses in the TOD zone shall be as per prevailing building byelaws, whereas the FAR above this shall be on purchasable basis.
- (2) For availing maximum permissible FAR, charges of purchasable FAR only shall apply. That is to say, that the charges for purchasable FAR and premium purchasable FAR shall be the same.

8.2.2.3 Parking

Parking requirement – 1 ECS per 100 sqm of floor area.

8.3 Other requirements

8.3.1 Restrictions on mixing of activities in mixed-use development.

The owner/developer shall have the flexibility for horizontal and vertical mixed-use development, provided that –

- 1) Only non-manufacturing industries and service industries like Information Technology, Information Technology enabled services/ Business Process Outsourcing/ Knowledge Process Outsourcing, etc. (IT-ITES/ BPOs/ KPO) and pollution free MSME units may be mixed with other uses such as residential, commercial and institutional.
- 2) Educational Institutions, Anganwadi, crèches, old age homes, etc. should not be mixed with health care facilities or manufacturing and/or warehousing facilities. These facilities (educational institutions, Anganwadi, creches, old age homes, etc.) should necessarily be

developed on the lower floors and preference should be given to reach the open places of the TOD scheme.

- 3) Separate entry/exit and service shafts shall be provided as necessary in buildings with vertical mixed use.
- 4) Following activities shall not be mixed with other permissible uses in mixed-use development:

Industrial: Large scale industry, sugar mill, rice seller, flour mill, Pasteurizing plant/ Milk storage centre, Meat Processing Plant, Mining brick/ lime kiln, crusher, Oil depot/ LPG refilling plant, Bio Diesel Plant, Power generation plant, Hazardous/ dangerous/ polluting industries
Public-Semi Public: Prison/ Jail, Correction facilities/ Reform Homes, Sanatorium, Compost plant, Scientific Landfill Sites, MRF Facilities, Bio-Medical Waste Treatment Facility, Slaughterhouses
Traffic & Transportation: Airport/ Flying club
Recreational: Shooting Range
Agricultural: Farmhouse, Repair of agricultural equipment/ servicing workshop

Note-1: In case of layout plots along roads of width 24-meter-wide or more on availing mixed land use and consequent FAR conditions, development fees, impact fees and other charges shall be applicable on highest category use and the relevant changes shall also be incorporated in the lease deed.